

#	Case Name	Tentative
		pursuing their claims. The Belenardos reasonably could respond in kind. The court has considered plaintiffs' request to further apportion fees and to apply a discount for "block billing." The court denies that request. The court awards fees of \$279,420.00. The Belenardos' evidentiary objections to the declarations are OVERRULED. The Bales' evidentiary objections are SUSTAINED as they relate to statements concerning the disciplinary proceedings and exhibits concerning Kamath, and otherwise OVERRULED. The Belenardos shall give notice of this ruling.
53.		
54.	Elavon, Inc. v. Creative Arcades LLC 2026- 01564124	The motion of defendants Creative Arcades LLC and Brian Horowitz for an order compelling arbitration of the claims brought by plaintiff Elavon, Inc., and staying the court proceedings pending the resolution of the arbitration is GRANTED. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the Court must order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (1) the right to compel arbitration has been waived by the petitioner; (2) grounds exist for the revocation of the agreement; or (3) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. Code Civ. Proc. § 1281.2. Here, plaintiff does not deny the existence of the provision for arbitration or contend that it is not enforceable. Rather, it contends that it chose to file the action in court instead of seek arbitration because of the simple nature of the claim. The parties are ORDERED to arbitrate their claims in accordance with their agreement. Plaintiff shall commence the arbitration within 30 days of this order.

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		The Court sets a review hearing concerning the status of the arbitration for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the hearing, the parties are ordered to file a joint status report. The Court orders this matter STAYED pending completion of the arbitration or further order of the Court. The case management conference scheduled for September 21, 2026 is VACATED. Defendants shall give notice of this ruling.
55.	Hermann v. American Honda Motor Co., Inc. 2026-01563133	Defendant American Honda Motor Company, Inc.'s motion to compel arbitration and staying the court action pending resolution of the arbitration is DENIED. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the Court must order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (1) the right to compel arbitration has been waived by the petitioner; (2) grounds exist for the revocation of the agreement; or (3) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. Code Civ. Proc. § 1281.2. Under section 1281.2, a trial court must grant a motion or petition to compel arbitration only "if it determines that an agreement to arbitrate the controversy exists." <u>Gamboa v. Northeast Community Clinic</u> (2021) 72 Cal.App.5th 158, 164. The court makes this determination in a summary process. <u>Id.</u> The trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. <u>Id.</u> The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence. <u>Id.</u> Because the existence of the agreement is a statutory prerequisite to granting the motion or petition, the party seeking arbitration bears the burden of proving its existence by a preponderance of the evidence. <u>Id.</u> at 164-165.